

4.

CASE #	CASE NAME	HEARING NAME
CVRI2203529	MARTINEZ VS AMERICAN HONDA MOTOR CO	MOTION FOR ATTORNEYS FEES BY NOEMI MARTINEZ, JOSE MARTINEZ TRUJILLO

Tentative Ruling:

The Court GRANTS the motion and awards fees of \$38,115, payable within 21 days of this Order.

Plaintiffs' counsel rates ranged from \$350 to \$600 per hour. The hourly rates do not appear to be reasonable for Riverside County. Plaintiff makes no showing that they could not obtain local counsel, and therefore, are entitled to out-of-town rates. (*Center for Biological Diversity v. County of San Bernardino* (2010) 188 Cal.App.4th 603, 615-619 (plaintiffs were entitled to Santa Monica rates for counsel when they proved they could not obtain local counsel).) The Court reduces the rates for all attorneys to \$350 per hour.

Defendant argues that the fees incurred after the CCP §998 offer acceptance (2/28/24) must be denied, based on the terms of that specific §998 offer. However, Defendant failed to attach the purported §998 offer. Although defense counsel's declaration references the offer as Exhibit A, no such exhibit was attached, precluding review.

Defendant's other challenge to Plaintiffs' fees is to strike \$3,290 in fees Plaintiffs' counsel billed for opposing Defendant's motions to compel deposition and written discoveries. Defendant argues that this time spent was due to Plaintiffs' "discovery abuses." Plaintiffs argue that this motion work was caused by Defendant's inadequate meet and confer efforts and that most of the issues were moot by the hearing. As there is no evidence that such motion work was frivolous or brought in bad faith, the time spent is compensable.

Accordingly, based on a reduced hourly rate of \$350 for all attorneys, the adjusted lodestar for a total of 106.9 hours spent (see Plaintiffs' motion, p. 10.) is **\$37,415** (\$350 per hour x 106.9 hours.)

The Court denies the request for a multiplier; this was not a complicated case. Plaintiff requests additional fees for the reply and hearing. A reply was filed. Two hours is a reasonable amount of time to prepare the reply and attend the hearing. At an adjusted rate of \$350 per hour, this amounts to \$700.

Accordingly, the adjusted lodestar would be **\$37,415 + \$700 = \$38,115**.